

Director of Military Prosecutions Policy
Victims, Witnesses, and the Military Community
19 May 2026

Introduction

1. The proper administration of military justice requires participation and consultation with victims, witnesses and the broader military community (which includes, but is often referred to collectively as, the ‘chain of command’). Each have their own role within the system, and their own rights, needs and interests. Victims must be afforded a meaningful role in military justice proceedings so that they are protected, considered, informed, respected and heard. Witnesses must be properly prepared to testify at court martial. The chain of command must be kept informed of the progress of a case and have a meaningful opportunity to provide input into prosecutorial decisions.

Policy Statement

2. The Canadian Military Prosecution Service (CMPS) is committed to ensuring that victims are provided with their full rights under the Declaration of Victims Rights (DVR), that witnesses are properly prepared for their participation at court martial, and that the chain of command is informed and meaningfully consulted as cases proceed.

Victims Rights

3. Military prosecutors will become acquainted with, observe and enforce the rights afforded to victims in the DVR, as prescribed in Part III – Division 1.1 of the *National Defence Act* and amplified in QR&O Chapter 108. Where victims are anticipated to testify at court martial, they will be properly prepared as witnesses in accordance with the direction below.

4. Military prosecutors will meet with victims in person (which may be done by VTC where appropriate) early in the process following referral of charges, and as many times after the initial meeting as is reasonable and necessary to ensure that they are informed, understand the process and are as prepared as possible for their participation in the case, including for testifying when necessary.

5. Military prosecutors will enquire, where appropriate, whether a victim has received independent legal advice or has independent legal representation, and should encourage victims who have not contacted the Defence Community Support and Resource Centre (DCSRC) to do so at their earliest convenience.

Witness Preparation

6. Proper witness preparation is crucial to a successful prosecution. Military prosecutors are expected to meet with prospective witnesses well in advance of trial, except in the simplest of cases. Witness preparation meetings should be conducted with an investigator present. While the purpose of the meeting is to prepare the witness to testify, if new evidence emerges during the

interview the investigator must record the new evidence and the prosecutor must follow the normal disclosure process.

7. Military prosecutors will inform every prospective witness of their right to testify in the official language of their choice and confirm that choice with them. Where their choice might trigger a requirement for an interpreter, the prosecutor shall inform the Court Martial Administrator in writing as soon as is practicable before the hearing begins.

Military Community

8. The prosecution of service offences contributes to the maintenance of discipline, efficiency and morale of the Canadian Armed Forces (CAF). While military prosecutors must act independently from the chain of command, and free from partisan or other improper influences, prosecutorial decisions cannot be made in isolation. Military prosecutors must understand the needs of the military community, and the military chain of command must understand and be informed of military justice processes and outcomes.

9. Military prosecutors will maintain effective communication with service authorities throughout a case. Military prosecutors must comply with their obligations under the QR&O to inform service authorities (e.g. commanding officers and military police) of key prosecutorial decisions in respect of a case. During a court martial, the prosecutor will provide regular updates to the chain of command on the progress of the trial.

10. In preparation for sentencing, military prosecutors will ensure that the commanding officer of the offender is aware of, and afforded, the opportunity to prepare a military impact statement.

11. At the conclusion of a court martial, in addition to the mandatory reporting requirements provided at QR&O, military prosecutors will meet with the commanding officer of the accused/offender and, as appropriate, other members of the military community to provide a summary of the proceedings and to answer questions about the military justice process.

Availability of this Policy

12. This policy is a public document and is available to members of the CAF and to the public.